



Charter Trustees Act 1985

1985 CHAPTER 45

An Act to provide for the continuation of the charter trustees of any city or town and for the preservation of their powers and of the privileges and rights of the inhabitants of their area upon that area becoming comprised in a borough. [16th July 1985]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The amendments specified in subsection (2) below shall have effect for the purpose of providing that where, after the passing of this Act, the area of any charter trustees becomes comprised in a borough (upon the grant of a charter under section 245 of the Act of 1972 conferring borough status or the making of an order under Part IV of that Act)—

Continuation
of charter
trustees, etc.

- (a) the charter trustees constituted for that area shall continue in being without alteration of their powers; and
- (b) the privileges and rights of the inhabitants of that area shall be unaffected.

(2) Section 246 of the Act of 1972 (status of cities and boroughs) shall be amended as follows—

- (a) in subsection (2)(a), after the words “in the district” there shall be inserted the words “being powers which are not exercised pursuant to subsection (4) or (5) below by charter trustees”;

- (b) in subsection (2)(b), after the words "city or borough" there shall be inserted the words "for which charter trustees are not constituted pursuant to subsection (4) or (5) below";
 - (c) in subsection (6), for the words "(3) and (4) above and any order under" there shall be substituted the words "and (3) above and any order applying subsection (3) made pursuant to";
 - (d) subsection (7) shall cease to have effect;
 - (e) in subsection (9), for the words "neither subsection (7) nor subsection (8) above applies" there shall be substituted the words "subsection (8) does not apply".
- (3) Nothing in this section shall affect any charter granted under section 245 of the Act of 1972 prior to the passing of this Act.

Short title,
interpretation
and extent.
1972 c. 70.

- 2.—(1) This Act may be cited as the Charter Trustees Act 1985.
- (2) In this Act, "the Act of 1972" means the Local Government Act 1972.
- (3) This Act does not extend to Scotland or Northern Ireland.